

RESEARCH — Legal Architecture, Delivery Requirements & Deal Terms of a Feature Doc

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General best-practice education, NOT legal advice — Deep Dive's defamation-risk storyline crossing HR/EU/UK/US law requires an entertainment/media lawyer engaged NOW.

Thesis: Buyers don't buy "the movie" — they buy a **bundle of proven, insured, technically compliant rights**. Everything below proves, insures, and packages those rights. Skip a layer and the sale dies at signature, at delivery, or after the money was spent.

1. Chain of title — the film's proof of ownership

The **unbroken sequence of signed agreements proving how every right flowed from its creator to your company** — checked at four gates: completion bond, E&O, treaty co-production certification, and the sale. A gap (missing assignment, unsigned release, undocumented transfer) "can delay or kill a distribution deal regardless of creative quality" (Thoolie; IndieWire; Rodriques Law).

The documents: (1) company formation docs; (2) underlying rights (if "based on" anything — for the 2023 case: facts are free, adaptation of specific journalism isn't); (3) **writer/director agreements assigning the film to the company** — critical when director = producer: without assignment the *person* owns the film, not the company; (4) producer/production services agreements; (5) **participant appearance releases** — every recognizable person; (6) life-story/depiction agreements for principals; (7) **crew deal memos with IP assignment** — footage a shooter shot is THEIR copyright until assigned; (8) location agreements/permits; (9) music: composer agreement + sync & master licenses; (10) **archival licenses** (competition footage likely belongs to federations/host broadcasters — big cost/risk item); (11) trademark/logo clearances or fair-use positions (sports docs are full of sponsor logos); (12) title report & copyright search (E&O insurers require it); (13) financing agreements & security discharges; (14) certificates of authorship / short-form assignments.

What breaks a chain: the unsigned release (subject leverage becomes total); the freelancer who never signed; **festival-only music licenses** when the streamer needs worldwide/all-media (re-clearing after lock = prices triple); verbal co-production promises; the corporate gap (contracts signed personally, entity never acquired the film).

Discipline: a live chain-of-title binder from day one — every agreement filed the day it's signed, one-line index. Producing it in 24 hours vs 3 panicked months = professional vs first-timer.

2. E&O insurance — the liability shield

Covers **defamation/libel, invasion of privacy, copyright/trademark infringement, idea theft, clearance failures** — and crucially pays **legal defense costs** (in a defamation suit, the process is the punishment; defense costs bankrupt indies even when they win). **No streamer/broadcaster takes a film without it** — plaintiffs sue everyone in the chain and the platform has the deepest pockets; E&O is a contractual condition of delivery.

Numbers: limits \$1M/\$3M indie standard (Netflix/HBO-tier often \$1M/\$5M+); deductible \$2.5–25k, buyers cap ≤\$10k; **term 3 years from delivery** (some want 5); premium **\$3–10k typical indie, \$20k+ for high-risk content**; carrier AM Best B+; buyer as additional insured, primary & non-contributory, waiver of subrogation. **Deep Dive: budget €10–20k** — a live doping/ethics controversy is exactly the content that pushes premiums up.

What the insurer requires (the application is an audit): clearance report/legal opinion (often attorney-signed); copyright & title searches; the entire chain of title; releases from every recognizable living person with edit rights; final music/archival licenses; for contentious content an **annotated transcript of the locked cut** — every factual assertion about the 2023 case footnoted to its evidence; and a **legal read of the near-final cut BEFORE picture lock** (recutting after lock re-triggers music conform, M&E, subtitles, QC). Start the E&O conversation at rough cut, not delivery.

Production insurance vs E&O: production package covers *physical* shoot risk (gear, media, liability, cast; for freediving add dive-specific/marine cover) and ends at wrap; E&O covers the *content* and lives 3+ years post-delivery. Two policies, often two insurers.

3. The key contracts — plain-language deal points

3.1 Director's agreement (even when directing your own film): the company must contract the director or chain of title has a hole exactly where buyers look first. Deal points: services through delivery incl. festivals/press; fixed fee (part-deferred normal at this scale — define the deferral trigger) + backend points; **rights assignment** (results & proceeds; in HR/continental Europe moral rights are inalienable — instead a broad consent to cuts/versions/edits, per FERA contract guidelines); credit; **creative controls** — default: company/financiers hold final cut, director gets consultation + defined cuts (DGA-style "two cuts and two previews"); buyers demand conform rights for ratings/law/platform — grant narrow, defined editing rights, never open-ended; suspension/termination/replacement (financiers require it even for director-producers — it's what makes the film financeable).

3.2 Participant releases & life-story rights — two different instruments:

- **Appearance release:** permission to film + use name/likeness/voice/interview in the film and promotion, worldwide, perpetuity, all media, with edit rights. Signed **on the day of filming, never "later"**. Everyone recognizable.
- **Life-story agreement** (principals): legally "there is no copyright in a life" — facts are free. What it actually buys: (1) **cooperation** (exclusive access, personal archive — the divers' own GoPro/dive-computer footage is THEIR copyright); (2) **exclusivity** (no competing doc access — Netflix asks "is this story locked?"); (3) **a covenant not to sue** (waiving defamation/privacy/publicity claims — what the E&O underwriter loves most); (4) optionally remake/scripted rights (cheap to option now, expensive after awards).
- **Control:** never grant cut approval (buyers may refuse a film a subject can veto; journalistically it taints the film). Defensible middle: right to view + notes; correction of factual errors; approval over narrowly-defined private facts (medical details). Get releases from family/secondary figures too. **Blackout footage: specific consent to THAT footage** (him, safety divers, medics) — privacy ≠ defamation; true medical facts can still violate privacy.
- **Paying subjects** is ethically contested (looks like buying testimony; raised against credibility in defamation fights) — modest materials/consulting fee or small backend, consistent and disclosed;

lawyer's call.

3.3 Crew deal memos: rate/OT/kit/kill fee (10–25%); **assignment of all economic rights + consent to modifications** (US "work for hire" doesn't map to HR law — draft for Croatian law); credit at producer's discretion; confidentiality; **no-injunction clause** (crew can sue for money, not block release — buyers check); employment classification (ugovor o djelu / autorski ugovor / employment — local accounting advice).

3.4 Composer & music — the #1 doc clearance failure:

- **Commissioned score (recommended):** work-for-hire/full assignment — production owns composition AND master, all sync rights forever; or composer keeps copyright + grants broad license (must be worldwide/all-media/perpetuity incl. promos or the streamer deal snags). Composer keeps their **writer's share of PRO royalties** (costs you nothing — name on the cue sheet, collects from HDS-ZAMP/ASCAP when it airs). **Package deal** standard: one fee covers writing, musicians, studio, mixed masters **and stems** (needed for M&E).
- **Licensed music — every track needs TWO licenses:** sync (publisher) + master use (label), both matching your sale: worldwide, all media, term >= distribution term. Festival-only licenses are a trap. Never temp-track into loving an unclearable song.
- **Cue sheet:** timecoded list of every cue, usage, composer, publisher, PRO shares — mandatory delivery item and how the composer gets paid.

3.5 Editor agreement: weekly rate or flat fee + defined cuts + overage terms (doc edits ALWAYS overrun); full assignment of the cut; credit; no approval rights; **materials custody** (project files/timelines belong to production, handed over on request); post-lock services (delivery conforms, textless builds, QC fixes) priced in now.

3.6 Co-production agreement heads: each party's financial contribution (minimums matter for treaty status/Eurimages); copyright split tracking finance/spend; division of rights & territories (each keeps home territory is common); **the recoupment waterfall**; creative control (delegate producer; who approves cut, overruns, key hires); spend obligations per country; delivery obligations; credits (logo order!); festival strategy + who signs the sales agreement; default/buy-out mechanics; governing law/arbitration. One lawyer must read HAVC + Eurimages + broadcaster contracts side by side for contradictions.

3.7 Sales agent agreement — where good films die financially:

Term	Market range	Fight for
Commission	10–35% spectrum; ~ 20–25% doc norm ; >30% = red flag ; strong packages get 10–15%	15–20% with festival heat; tiered (lower % on a direct streamer sale they barely worked)
Advance/MG	Rare for docs; recoupable from your share	Don't trade a small advance for fat commission + long term
EXPENSE CAP	Typical actuals €20–30k; caps \$50–75k appear for features	Hard cap €20–40k for a doc + itemized approval above a threshold. No cap = the agent can spend your entire revenue

Term	Market range	Fight for
Term	5–15 yrs typical	7–10 max + performance reversion (no sales of €X by year 2 › rights revert). Never perpetuity without exploitation obligations
Territories	Worldwide ex-home common	Carve out Croatia/ex-YU if you have the HRT relationship
Deliverables	Full \$4 list at your cost; "many producers spend 6–12 months delivering"	Negotiate the list down; exotic items "on request/at buyer's cost"
Reporting/audit	Quarterly/semi-annual; 24-month audit lookback	Both + copies of underlying distribution agreements

Red flags (walk away): no expense cap or "as incurred"; **cross-collateralization** (your revenue offset against their other titles, or expenses pooled across territories — "the producer's single most expensive recurring mistake"); 20+ year terms without reversion; refusing a CAMA; commission on money they didn't generate (your grants, festival prizes — exclude prize money from "revenue"); sub-licensing to affiliates without consent; upfront cash "marketing contributions"; commission on gross incl. withholding taxes.

3.8 Distributor/streamer license basics: license (defined rights/term/territory, rest stays yours) vs buyout (streamer "Originals" = effectively buyouts, bigger cheque, no backend). Terms 7–15 yrs standard licenses; streamer flat-fee often 2–5 yrs + renewals (shorter = better for you). Watch **holdbacks** (blocks on other windows — must match your festival/theatrical/HRT plans; vague window definitions = the most common distributor dispute). Money: flat license fee (streamer standard) or MG + revenue share (distributor: classic **10% on signature, 90% on delivery** — delivery is the payment trigger; a film that can't complete delivery sold itself for 10%). All conditioned on: accepted technical delivery + complete chain of title + live E&O naming them.

4. The delivery spec — "the thing that kills films"

The buyer must exploit the film in 190 countries, dub 30 languages, caption, cut promos, and defend it in court — without ever calling you again. The delivery schedule is the parts-list for that, and **the final 90% of your money is conditioned on its acceptance.**

A. Picture: graded master ProRes 4444/422HQ at native res (4K increasingly demanded); Netflix takes IMF; theatrical needs DCP. **Texted AND textless masters** — Deep Dive is full of lower-thirds, depth counters, subtitled Croatian: **plan the textless build during the online, not after.** Archival/mezzanine sometimes required.

B. Audio — where docs stumble: 5.1 printmaster + stereo (Lt/Rt), time-aligned WAVs; **the M&E (Music & Effects) track** — full mix minus all dialogue/narration so foreign dubs can be laid over. **Why it kills docs:** vérité sound has dialogue and ambience on the same mic — you can't mute a channel; a proper doc M&E means rebuilding ambiences/effects under every dialogue scene ("filled M&E"). If the mixer doesn't build it DURING the mix, recreating later costs thousands and weeks. **Put "full filled 5.1 M&E + stems" in the sound-post contract NOW.** Stems (DX/MX/FX) for

promos/re-versioning. Loudness compliance (e.g., Netflix -27 LKFS dialogue-gated).

C. Text/localization: timecoded dialogue/continuity/spotting list (for a bilingual CRO/EN film incl. translations — budget a pro service); CC/SDH files + the English subtitle file for Croatian dialogue.

D. Legal/admin: complete chain-of-title package; E&O certificate; music cue sheet + licenses; final credits + billing block + paid-ad restrictions + **HAVC/Eurimages logo placement obligations**; certified statements; lab access letters; tax forms; metadata package.

E. Marketing: 50–200 hi-res unit stills (no timecode/watermark) — **shoot stills DURING production; you cannot re-stage Etna or a world record**; layered key art (PSD); trailer.

F. QC — the gate: professional QC pass on everything (~\$500–3,000 per pass, ~\$1,500 typical). Common failures: loudness violations, sync drift, dead pixels/dropped frames in archival, interlacing from old comp footage, gamut errors, **M&E holes (audible dialogue bleed)**, subtitle timing, textless mismatching texted. Archival-heavy docs fail disproportionately. Failed QC = re-master + paid second pass + **4–8 weeks of lost release window; hold \$3–5k contingency**.

Cost & time reality: deliverables take 5–6 weeks in post; QC ~ 4–5× runtime per version; producers routinely spend **6–12 months** completing delivery; realistic all-in delivery budget at this level **€25–60k+**. **The first-timer death spiral:** sign a 90%-on-delivery deal > discover M&E was never built > sound post wants €12k and 6 weeks > miss delivery date > window slips > deal cools. Every element preventable in the original post contracts. **Prevention:** (1) put a real streamer delivery schedule in front of the post supervisor BEFORE contracting the online/mix; (2) make M&E, textless, stems, spotting list contractual deliverables of the sound house/online facility; (3) hold 5% of post budget as delivery contingency; (4) negotiate the buyer's list down before signature ("if available"/"at buyer's cost" items are wins).

5. Pitch & marketing materials taxonomy

Logline (1 sentence, 25–40 words) > short synopsis (100–150 w, the STORY not the topic) > long synopsis (1 p, incl. resolution) > director's statement (0.5–1 p: why you, why now, your access, ethics of the 2023 storyline) > treatment (5–20 pp: structure, characters, scenes, visual language, archival plan) > **pitch deck/lookbook (12–15 slides:** title+logline · story · the four · the world · the 2023 case & why it matters · visual approach/mood frames · access & archival · team · budget + finance plan with status · comparables (*The Deepest Breath*, *Icarus* — the doping-doc comp) · distribution/festival strategy · status & timeline · contact) > sizzle (1–3 min proof-of-concept for an UNFINISHED film — the thing that raises money) vs teaser (<=1 min public atmospheric) vs trailer (90–150s, for the FINISHED film) > one-pager/sales sheet (key art, logline, specs, laurels, contact) > EPK (5–15 pp: verified facts, synopses, statements, bios, 3–10 clean stills, poster, trailer links, press, contacts — many festivals require it) > unit stills (100–200, during production) > poster/key art (layered PSD).

By stage: financing (now > IDFA Forum): logline, synopsis, statement, treatment, deck, sizzle. Festival premiere: EPK, stills, teaser, poster, press strategy. Sales: one-pager, trailer, screener, deck+laurels. Delivery: trailer, stills, layered art, EPK become contractual deliverables. **Build once, use three times.**

6. Sensitive real-life / defamation-risk content (the 2023 chapter)

1. **Truth, rigorously documented** — truth is the defense, but only *provable* truth. Keep an **annotation file**: every assertion in the cut > footnoted to a document, on-record interview, or official finding. Distinguish adjudicated fact ("was sanctioned under the Code of Ethics") from allegation ("competitors claim") — make the film's language match.
2. **Avoid actual malice/recklessness** — public figures (world-record athletes qualify) must prove knowing falsity or reckless disregard (US); protection is process: contemporaneous notes, fact-checking, considering contrary evidence AND keeping the record that you considered it. Reckless = ignoring an obvious contrary source, single motivated accuser, editing an answer to reverse meaning.
3. **Right of reply** — before lock, send the accused party/parties a written summary of the specific allegations and invite response; include the response (or "declined to comment") in the film; **archive the correspondence** — Exhibit A of good faith. Applies to the federation as much as any individual. Europe adds wrinkles: criminal defamation survives in parts of the Balkans; UK libel is claimant-friendly — the lawyer must be cross-border aware.
4. **Legal read of the fine cut before lock** — flags unprovable assertions, private facts (medical/furosemide detail = defamation AND privacy issue), juxtapositions that imply guilt (the edit can defame even when every line is true), music/archival gaps.
5. **Participant consent as risk-transfer** — covenants not to sue shrink the plaintiff pool to non-participants, where right-of-reply + annotation take over.
6. **Privacy ≠ defamation** — true statements can violate privacy (private medical facts, secret recordings, medical-emergency footage). Blackout: specific consent.
7. **E&O ties it together** — insurer demands 1–6 as underwriting conditions; done early they LOWER the premium; done late they force post-lock recuts, the most expensive edits in film.

Deep Dive priority actions (July 2026)

1. Engage the media lawyer this month (HR + international reach): chain-of-title audit, release templates, right-of-reply protocol.
2. Audit Krk + Sicily releases — every person, shooter, location; fix gaps while relationships are warm.
3. Lock the four with life-story-style agreements (cooperation + materials + covenant not to sue; no cut approval — chapter-limited viewing right per the working-paper promise).
4. Scope archival early — who owns 2023 competition/broadcast footage; quotes for worldwide/all-media/10+ yrs into the finance plan.
5. Contract sound post with delivery in mind: filled 5.1 M&E, stems, loudness, textless — in the deal memo.
6. **Budget the invisible €40–80k**: E&O 10–20k, delivery/QC 25–60k, legal 10–25k, CAMA setup — before the next financier conversation.
7. Start E&O application at rough cut (annotation + legal read scheduled pre-lock).
8. IDFA Forum: deck 12–15 slides, sizzle 1–3 min, treatment, statement — and be ready for "who owns the film and is the story locked?" (a chain-of-title and life-rights question in a pitch-meeting costume).

Key sources

Chain of title: Thoolie guide · IndieWire · Seed&Spark · Rodriques Law · Film Finance Attorney · Tools for Film checklist. E&O: IDA "Errors & Omissions" guide (documentary.org) · Kelly Insurance FAQ · Wrapbook · Front Row 101 · thagency cost · Film Emporium · Romano Law. Contracts: Wrapbook director agreements · DGA creative rights · FERA directors' contract guidelines (filmzaken.com PDF) · Marc Jacobson · Thoolie 2026 director guide · IDA life-story rights · Mark Litwak life rights · Hollywood Reporter · Romano Law · StudioBinder/Wrapbook/SetHero/Saturation deal memos · WMM sample memo · Lunacy + MusicContracts composer · Levantine music rights · NYSBA cue sheets. Co-pro: CoE IRIS Plus · European Audiovisual Observatory · FilmDaily · Entertainment Partners · Stage 32. Sales: Vitrina deal terms · Thoolie distribution guide · Distribution Advocates cheat sheet · Guerrilla Rep · Stage 32 CAM · Zannoni · FilmChain · Eurimages CAM rules · Ty Leisher. Delivery: Netflix Partner Help (branded specs, M&E incl. nonfiction) · Guerrilla Rep deliverables · Film Independent "Deliverables Demystified" · Slingshot · Thoolie checklist · Vitrina cost · +Reel hidden costs · MoltenCloud · Production Expert · Film Collaborative. Pitch: DocFilmAcademy deck + sizzle · Desktop Documentaries · Viktori · Filmsourcing/FilmDaft/StudioBinder EPK. Defamation: PBS Media Law 101 · The Clearance Lab (×2) · Safe + Secure · Cornell LII · DMLP · Aaron Hall.